

Complaint Intake & Fair Inquiry

Quick Process Guide | Module 8 – POSH Trainer Toolkit

PURPOSE Use this quick guide after the live Module 8 session to revisit the complaint-handling and inquiry sequence covered in the programme. It is a reference aid, not a substitute for the POSH Act, Rules, applicable service rules or organisation policy.

1. RECEIVE & ACKNOWLEDGE THE COMPLAINT

- Receive the written complaint and available supporting material through the recognised complaint route.
- Record the date of receipt and preserve the complaint and related records securely.
- Check whether the complaint falls within the relevant workplace/forum and note applicable timelines.
- Communicate respectfully and avoid judging, interrogating or promising a particular outcome at intake.

2. EXPLAIN OPTIONS & EARLY PROCESS

- Explain the role of the Internal Committee and the next procedural steps.
- Where the aggrieved woman requests conciliation, consider it before inquiry; monetary settlement is not the basis of conciliation.
- If the matter proceeds formally, ensure that members handling the inquiry are free from relevant conflicts of interest.
- Provide the respondent the complaint/material required by the applicable procedure and allow the prescribed opportunity to respond.

3. PREPARE THE INQUIRY FILE & PLAN

- Identify each allegation/issue separately and prepare a clear chronology of dates and events.
- List relevant witnesses, documents, messages, emails, records or other material that may assist the inquiry.
- Prepare focused questions for the complainant, respondent and witnesses; avoid unnecessary graphic or humiliating questioning.
- Plan hearings/interviews, logistics and timelines and maintain a confidential, organised case file.

4. CONDUCT A FAIR INQUIRY

- Follow the principles of natural justice and give both parties a fair opportunity to present relevant information.
- Listen without prejudice and distinguish emotion, assumption and opinion from evidentiary material.
- Provide sufficient adverse material to enable a meaningful response in accordance with the applicable procedure.
- Consider interim measures requested/appropriate during the inquiry without treating them as a finding on the merits.

5. ASSESS EVIDENCE & REACH REASONED FINDINGS

- Check whether the information collected is complete enough to address each allegation.
- Compare statements, identify areas of agreement/disagreement and examine supporting or circumstantial evidence.
- Assess each allegation against the relevant law, rules, policy and evidence rather than intuition or stereotype.
- Record clear reasons for the finding on each allegation.

6. RECOMMEND & REPORT

- Where an allegation is not upheld, recommend no action on that allegation.
- Where an allegation is upheld, make recommendations in line with the Act, applicable service rules/policy and the facts found.
- Prepare the inquiry report with the process followed, material considered, analysis, findings and recommendations.
- Make the report available to the concerned parties and employer as required and preserve confidentiality.

Key Timelines Covered in the Programme

Process Point	Programme Reference
Complaint filing	Ordinarily within 3 months from the incident / last incident in a series; extension may be considered as covered in the programme.
Complaint shared with respondent	Within 7 working days.
Respondent response	Within 10 working days.
Inquiry completion	Within 90 days.
Inquiry report after completion	Within 10 days of completion of inquiry.
Appeal	Within 90 days, as covered in Module 9.

FAIR-PROCESS REMINDER A complaint is an allegation requiring fair examination. The IC should neither presume the complaint is proved nor presume it is false. Confidentiality, impartiality, opportunity to respond and reasoned decision-making run through the entire process.

At Complaint Intake: Do / Avoid

DO	AVOID
Create an enabling, respectful environment.	Aggressive or adversarial questioning.
Listen attentively and without preconceived conclusions.	Insisting on unnecessary graphic detail.
Treat both complainant and respondent with respect.	Interrupting or debating the party while they speak.
Record relevant information accurately and securely.	Discussing complaint details casually or beyond those who need to know.

Inquiry Discipline

- Keep the allegation, the evidence and the finding distinct.
- Give both parties a fair opportunity to present and respond to relevant material.
- Maintain confidentiality while preserving procedural fairness.
- Document the reasons that support the final findings and recommendations.

